

HOUSE No. 2075

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring OSHA training.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/6/2025</i>

HOUSE No. 2075

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 2075) of Tackey Chan for legislation to require that certain construction industry employers provide occupational safety and health administration training to employees. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1842 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring OSHA training.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 143 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 100 the following new sections:-

3 Section 101. Any employer in the construction industry that contracts with clients or
4 customers in residential, commercial, or public works projects, and whose business is subject to
5 oversight by the United States Occupational Safety and Health Administration, shall have its
6 employees receive no less than 10 hours of Occupational Safety and Health Administration
7 training. Employers that contract independent contractors shall require the independent
8 contractor to provide evidence of completing at least 10 hours of a training course approved by
9 the Occupational Safety and Health Administration.

Any employer who utilizes employees without the required training shall be fined \$2,500 in the first instance, \$5,000 in a second instance and \$10,000 for each subsequent instance. Should an employee or contractor die as a violation of this section or a death is found in violation the United States Occupational Safety and Health Administration shall be fined \$25,000; provided that no fines shall be issued until the investigation is completed as to the cause of death. The board shall keep a list of violations of this section and violations publically available from United States Occupational Safety and Health Administration and the reason for a violation available and ready for access by the public.

The board shall promulgate rules and regulations on this section, including but not limited to, providing a list of available training providers, providing when employees should be trained again after the initial training and a way for consumers and employees to report violations to the board.

Section 102. The board shall promulgate guidelines by which cities and towns may issue permits to employers in the construction industry that violates section 101 or the United States Occupational Safety and Health Administration, and have been investigated and fines and penalties issued against them. This law shall not restrict routine home maintenance performed by homeowners. Projects that are completed for less than or equal to \$10,000.00 remain exempt from this law.